CERTIFICATE OF INSURANCE

Magnolia Market Lofts | Buffalo, NY

Insured	Magnolia Market Lofts Owner LLC
Location Covered	Magnolia Market Lofts, 4023 Peachtree Avenue, Buffalo, NY 80498
Certificate Date	September 13, 2021
Mortgagee	Alder Life Insurance Company

Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Prairie State Indemnity	UMB1731520	04/19/2025	04/19/2026	$1,000,000	$5,000
General Liability	Prairie State Indemnity	UMB2380244	06/23/2023	06/22/2024	$2,000,000	$100,000
Umbrella / Excess	Great Lakes Mutual	UMB2337930	02/05/2026	02/05/2027	$25,000,000	$5,000
Business Income	Allied Heritage Insurance	CPP1987966	02/12/2023	02/12/2024	$1,000,000	$10,000
Flood	Keystone Casualty	BOP9914836	01/06/2026	01/06/2027	$1,000,000	$5,000
Windstorm / Hail	Prairie State Indemnity	GL4175878	08/03/2025	08/03/2026	$5,000,000	$10,000
Terrorism (TRIA)	Allied Heritage Insurance	UMB1780255	05/31/2026	05/31/2027	$1,000,000	$25,000
Equipment Breakdown	Great Lakes Mutual	BOP8186051	01/21/2023	01/21/2024	$25,000,000	$25,000
Ordinance & Law	Prairie State Indemnity	BOP4986924	09/30/2024	09/30/2025	$2,000,000	$5,000
Workers' Compensation	Great Lakes Mutual	BOP9985911	11/12/2024	11/12/2025	$25,000,000	$50,000
Cyber Liability	Blue Ridge Underwriters	GL1626248	07/21/2023	07/20/2024	$5,000,000	$25,000
Crime / Fidelity	Blue Ridge Underwriters	CPP5137639	06/22/2025	06/22/2026	$25,000,000	$10,000
Pollution Legal Liability	Blue Ridge Underwriters	GL3563108	05/03/2026	05/03/2027	$50,000,000	$50,000
Employment Practices	Allied Heritage Insurance	CPP8264069	07/23/2024	07/23/2025	$5,000,000	$5,000

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Prairie State Indemnity	BOP8384031	05/03/2024	05/03/2025	$50,000,000	$100,000
General Liability	Great Lakes Mutual	GL1472092	05/08/2026	05/08/2027	$1,000,000	$5,000
Umbrella / Excess	Sentinel Property & Casualty	CPP5892772	12/23/2024	12/23/2025	$50,000,000	$25,000
Business Income	Prairie State Indemnity	UMB2329720	04/07/2024	04/07/2025	$2,000,000	$5,000
Flood	Allied Heritage Insurance	UMB1834627	01/05/2025	01/05/2026	$25,000,000	$5,000
Windstorm / Hail	Keystone Casualty	UMB7304152	07/20/2025	07/20/2026	$1,000,000	$50,000
Terrorism (TRIA)	Great Lakes Mutual	BOP2470756	04/11/2023	04/10/2024	$10,000,000	$5,000
Equipment Breakdown	Blue Ridge Underwriters	UMB7133053	01/11/2025	01/11/2026	$10,000,000	$50,000
Ordinance & Law	Blue Ridge Underwriters	GL1116605	06/21/2024	06/21/2025	$25,000,000	$10,000
Workers' Compensation	Allied Heritage Insurance	BOP9695129	10/26/2025	10/26/2026	$10,000,000	$50,000
Cyber Liability	Sentinel Property & Casualty	BOP8298030	10/28/2023	10/27/2024	$25,000,000	$50,000
Crime / Fidelity	Sentinel Property & Casualty	CPP1120676	02/22/2023	02/22/2024	$25,000,000	$5,000
Pollution Legal Liability	Great Lakes Mutual	BOP5901507	10/11/2024	10/11/2025	$5,000,000	$5,000
Employment Practices	Keystone Casualty	CPP4465604	10/21/2025	10/21/2026	$2,000,000	$25,000

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1. Appointment. Owner appoints Manager as the exclusive managing agent of Magnolia Market Lofts, and Manager accepts the appointment under the terms of this Agreement. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Management Fee. Manager shall receive a monthly management fee equal to 4.1% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

7. Spending Authority. Manager may incur expenses not exceeding $287,000 individually without Owner approval, except in an emergency threatening life or property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

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Commercial Property	Blue Ridge Underwriters	UMB8189648	10/07/2025	10/07/2026	$50,000,000	$25,000
General Liability	Blue Ridge Underwriters	GL8506369	02/05/2023	02/05/2024	$1,000,000	$5,000
Umbrella / Excess	Great Lakes Mutual	BOP2895701	02/26/2024	02/25/2025	$2,000,000	$100,000
Business Income	Sentinel Property & Casualty	UMB2709416	02/01/2026	02/01/2027	$1,000,000	$10,000
Flood	Great Lakes Mutual	UMB7772813	07/25/2024	07/25/2025	$25,000,000	$25,000
Windstorm / Hail	Keystone Casualty	GL6291133	07/28/2023	07/27/2024	$1,000,000	$25,000
Terrorism (TRIA)	Keystone Casualty	BOP9280435	06/18/2023	06/17/2024	$10,000,000	$50,000
Equipment Breakdown	Sentinel Property & Casualty	UMB6742936	02/21/2025	02/21/2026	$50,000,000	$5,000
Ordinance & Law	Sentinel Property & Casualty	CPP2515344	01/26/2023	01/26/2024	$5,000,000	$25,000
Workers' Compensation	Keystone Casualty	GL9787086	06/24/2024	06/24/2025	$2,000,000	$10,000
Cyber Liability	Great Lakes Mutual	GL6725550	09/13/2023	09/12/2024	$2,000,000	$50,000
Crime / Fidelity	Sentinel Property & Casualty	CPP1396269	06/18/2023	06/17/2024	$1,000,000	$5,000
Pollution Legal Liability	Prairie State Indemnity	CPP4556100	10/07/2025	10/07/2026	$50,000,000	$25,000
Employment Practices	Keystone Casualty	GL8967065	04/19/2023	04/18/2024	$10,000,000	$100,000

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8. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

9. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

10. Appointment. Owner appoints Manager as the exclusive managing agent of Magnolia Market Lofts, and Manager accepts the appointment under the terms of this Agreement. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

11. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

12. Management Fee. Manager shall receive a monthly management fee equal to 6.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

13. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Commercial Property	Sentinel Property & Casualty	CPP4343500	02/06/2024	02/05/2025	$25,000,000	$50,000
General Liability	Allied Heritage Insurance	CPP6037861	08/14/2024	08/14/2025	$1,000,000	$10,000
Umbrella / Excess	Sentinel Property & Casualty	BOP6970066	01/05/2025	01/05/2026	$10,000,000	$100,000
Business Income	Allied Heritage Insurance	BOP4019345	02/08/2026	02/08/2027	$50,000,000	$10,000
Flood	Prairie State Indemnity	GL5467189	02/21/2023	02/21/2024	$25,000,000	$5,000
Windstorm / Hail	Sentinel Property & Casualty	CPP8390970	05/25/2026	05/25/2027	$1,000,000	$5,000
Terrorism (TRIA)	Prairie State Indemnity	CPP5637228	01/06/2023	01/06/2024	$5,000,000	$25,000
Equipment Breakdown	Prairie State Indemnity	UMB1163936	02/11/2025	02/11/2026	$25,000,000	$50,000
Ordinance & Law	Blue Ridge Underwriters	GL4775165	05/24/2024	05/24/2025	$50,000,000	$5,000
Workers' Compensation	Great Lakes Mutual	GL9711831	05/18/2025	05/18/2026	$1,000,000	$50,000
Cyber Liability	Blue Ridge Underwriters	BOP2944101	02/25/2025	02/25/2026	$2,000,000	$25,000
Crime / Fidelity	Prairie State Indemnity	CPP2657948	09/30/2024	09/30/2025	$5,000,000	$50,000
Pollution Legal Liability	Blue Ridge Underwriters	CPP4725246	10/14/2025	10/14/2026	$5,000,000	$100,000
Employment Practices	Blue Ridge Underwriters	UMB2338334	08/11/2024	08/11/2025	$2,000,000	$10,000

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15. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

16. Spending Authority. Manager may incur expenses not exceeding $237,000 individually without Owner approval, except in an emergency threatening life or property. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY.

17. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

18. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

19. Appointment. Owner appoints Manager as the exclusive managing agent of Magnolia Market Lofts, and Manager accepts the appointment under the terms of this Agreement. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NY. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

20. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

21. Management Fee. Manager shall receive a monthly management fee equal to 3.1% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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Commercial Property	Allied Heritage Insurance	UMB6966309	10/05/2025	10/05/2026	$10,000,000	$25,000
General Liability	Allied Heritage Insurance	GL9705206	06/09/2023	06/08/2024	$10,000,000	$25,000
Umbrella / Excess	Blue Ridge Underwriters	BOP4458328	04/25/2026	04/25/2027	$50,000,000	$100,000
Business Income	Sentinel Property & Casualty	CPP8687839	03/28/2023	03/27/2024	$1,000,000	$50,000
Flood	Blue Ridge Underwriters	BOP8721547	01/23/2026	01/23/2027	$25,000,000	$5,000
Windstorm / Hail	Sentinel Property & Casualty	UMB3170769	10/13/2023	10/12/2024	$50,000,000	$50,000
Terrorism (TRIA)	Allied Heritage Insurance	CPP9793042	07/01/2024	07/01/2025	$2,000,000	$50,000
Equipment Breakdown	Sentinel Property & Casualty	GL4316745	05/28/2026	05/28/2027	$1,000,000	$100,000
Ordinance & Law	Allied Heritage Insurance	CPP4356665	07/04/2025	07/04/2026	$1,000,000	$10,000
Workers' Compensation	Sentinel Property & Casualty	GL5330100	05/28/2024	05/28/2025	$5,000,000	$5,000
Cyber Liability	Sentinel Property & Casualty	BOP2583070	03/18/2024	03/18/2025	$25,000,000	$100,000
Crime / Fidelity	Sentinel Property & Casualty	CPP6567310	10/30/2024	10/30/2025	$10,000,000	$100,000
Pollution Legal Liability	Allied Heritage Insurance	UMB2918431	03/28/2024	03/28/2025	$2,000,000	$25,000
Employment Practices	Prairie State Indemnity	UMB9362428	07/19/2023	07/18/2024	$50,000,000	$100,000

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